it is hard to fault the balance struck in 1962, tipped all the way toward the President in an Ex Comm. Secrecy, flexibility, uncertainty, and urgency—each alone makes a strong argument. Representation for essential interests underlines it. Together these impel the view that when a nuclear exchange impends, formal Congressional participation is not only inconvenient, but impracticable. In the missile crisis, if presidential decision had escalated to nuclear war, Congressional ratification would have been a mockery, or moot. Here the President is, and probably remains, the nation's Final Arbiter.

But does this logic carry over into warfare of a limited sort, nonnuclear by definition? If not, how are distinctions to be drawn, and how enforced?

It is easy to see why recent Presidents have kept away from Congress, acting on their own responsibility, at such times as June 1950, or July 1965—or April 1970. Indeed their reasons resemble those affecting President Kennedy in October 1962. Many decisions must be made in secret. Congress is notoriously leaky. Skillful bargaining with the antagonist (or even one's allies) requires flexibility. Congressional enactments are not readily amended on short notice. In limited warfare the geography, the weaponry, the scale, and the intensity are all subject to bargaining, overt or tacit. So is termination. A war declared by Congress cannot formally be ended without further act of Congress. And while Americans are more accustomed now than in Korean days to draw distinctions among "wars," the fear of 1950 that an invocation of formalities associated last with World War II might signal an unlimited intent to citizens at home—or governments abroad—still weighed upon the White House as recently as 1965.

Arguments like these led President Johnson to prosecute the Vietnam War at a substantial price, the price of foregoing "war powers," constitutional and statutory. These confer on the White House vast authority in home-front spheres like economic mobilization, public order, news management. But during the Korean War the Supreme Court decided that these powers flowed only from wars declared by Congress. Rather than see Congress act, Johnson dispensed with the authority. President Nixon follows the same course. This suggests how strong the case appears, at least from the perspective of two Presidents.

Yet Vietnam's cost, both human and material, and its duration, coupled with the absence of agreed success or even agreed purpose, has brought into being an opposed perspective, strongly espoused in the Senate, the more so as White House legitimacy has been subject to